

Court No. - 40

Case :- WRIT - C No. - 24807 of 2022

Petitioner :- Shiba

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Buddhi Prakash, Kamlesh Prasad

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Siddhartha Varma, J.

Hon'ble Vikas Budhwar, J.

When the electricity connection was not being provided by the respondents no. 2 and 3 to the petitioner, the instant writ petition has been filed.

Learned Standing Counsel may take instructions as to why the electricity connection has not been provided.

Place this petition as fresh on 15.9.2022.

Order Date :- 30.8.2022

PK

(Vikas Budhwar, J.) (Siddhartha Varma, J.)

Court No. - 29

Case :- WRIT - C No. - 24807 of 2022

Petitioner :- Shiba

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Buddhi Prakash, Kamlesh Prasad

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Misra, J.

Hon'ble Vikas Budhwar, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the respondent no.1 and Sri Narendra Kumar Tiwari, learned counsel for the respondents no. 2 and 3.

Considering the nature of the order we propose to pass, we do not deem it necessary to issue notice to the 4th respondent.

The petitioner claims to be tenant of portion of a house no.1692, Kareli, Tehsil Sadar, District Prayagraj of which the 4th respondent is the landlord. According to the petitioner, she was earlier provided electricity by the landlord but the same has been discontinued and the landlord has requested the petitioner to obtain an electricity connection in her own name. The case of the petitioner is that she has submitted an application after completing all the requisite formalities for a separate electricity connection in her favour but for no good reason the respondents no. 2 and 3 have not provided the electricity connection.

On 30.8.2022, when the matter was last taken up, the respondents' counsel was required to seek instructions.

Sri Narendra Kumar Tiwari, on instructions submits that this is a case where the earlier tenant of the premises has not cleared outstanding electricity dues and therefore, in view of Clause 4.3 (f) (vi) and (viii) of the U.P. Electricity Supply Code, 2005, the application of the petitioner is not being processed unless the previous dues are cleared.

Learned counsel for the petitioner submits that her case would be covered by Clause 4.3 (h) of the U.P. Electricity Supply Code, 2005 which provides that licensee shall not refuse connection to an applicant only on the ground that one of the connection holder of a divided premises has not discharged his bill/dues. It has been submitted on behalf of the petitioner that as there are several tenants in the building, the liability of the other tenants, if outstanding, cannot be used to deny an electricity connection to the petitioner against whom there is no

bill outstanding, particularly, when electricity is a basic human need and deprivation of electricity may amount to violation of Article 21 of the Constitution of India.

Having considered the rival submissions, we are of the view that since till date no specific decision has been taken on the application of the petitioner, we deem it appropriate to dispose of this writ petition by requiring the 3rd respondent (Executive Engineer, Poorvanchal Electricity, Distribution Corporation Sub-Division Karailabagh, District Prayagraj) to take an appropriate decision on the application of the petitioner in accordance with law and in light of the provisions of the U.P. Electricity Supply Code, 2005 by a reasoned order, preferably, within a period of three weeks from the date a copy of this order is provided in the office of the 3rd respondent. If the petitioner is thereafter aggrieved with the decision of the 3rd respondent, she shall be at liberty to take recourse to appropriate legal remedy.

The writ petition is **disposed off**.

Order Date :- 13.10.2022

piyush